

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM BRIAN MARSHALL
FILED BY: RISOFTEDEV INC**

TENTATIVE RULING:

Plaintiff RisofteDev Inc. has moved to compel further responses to requests for production of documents from Defendant Brian Marshall. Defendant filed a 48 page opposition. He did not comply with California Rule of Court 3.1113(d). Nor did he provide an opposition separate statement, which is what his brief is attempting to mimic, in part. The Court will not consider the overlong brief past page 15.

What is evident in the first 15 pages is that Defendant failed to comply with his discovery obligations. Counsel did not respond to any meet and confer attempts, and did not make a good faith attempt to respond to discovery. Plaintiff provided a declaration outlining a one-sided attempt to meet and confer, and Defendant did not rebut that with any declaration at all. Moreover, while some document requests may be capable of overbroad interpretations, the obligations do not stop there. They must produce relevant responsive documents that are within the scope of the request, while rightfully refusing to produce non-relevant or privileged documents, and explaining the process. Moreover, Defendants cannot decline to produce documents based on a professed misunderstanding of basic terms without offering their own definition and producing documents consistent with that definition. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”)

Plaintiff’s motion is granted. The court orders sixty days to comply with this order. Defendant Brian Marshall shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Requests for Production of Documents – Set One.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” In this case, in light of everything discussed above, Sanctions in the amount of \$3,500 are granted and payable by Defendant within 20 days of service of this order.

10. 9:00 AM CASE NUMBER: MSC20-00628

CASE NAME: RISOFTEDEV VS CHATFIELD

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES (JARED OWENSBY)**

FILED BY: RISOFTEDEV INC

TENTATIVE RULING:

Plaintiff Risoftdev Inv. has moved to compel further responses to requests for production of documents from Defendant Jared Owensby. Defendant filed a 51 page opposition. He did not comply with California Rule of Court 3.1113(d). Nor did he provide an opposition separate statement, which is what his brief is attempting to mimic, in part. The Court will not consider the overlong brief past page 15.

What is evident in the first 15 pages is that Defendant failed to comply with his discovery obligations. Counsel did not respond to any meet and confer attempts, and did not make a good faith attempt to respond to discovery. Plaintiff provided a declaration outlining a one-sided attempt to meet and confer, and Defendant did not rebut that with any declaration at all. Moreover, while some document requests may be capable of overbroad interpretations, the obligations do not stop there. They must produce relevant responsive documents that are within the scope of the request, while rightfully refusing to produce non-relevant or privileged documents, and explaining the process. Moreover, Defendants cannot decline to produce documents based on a professed misunderstanding of basic terms without offering their own definition and producing documents consistent with that definition. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”)

Plaintiff’s motion is granted. The court orders sixty days to comply with this order. Defendant Jared Owensby shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Requests for Production of Documents – Set One.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” In this case, in light of everything discussed above, Sanctions in the amount of \$3,500 are granted and payable by Defendant within 20 days of service of this order.

11. 9:00 AM CASE NUMBER: MSC20-00628
CASE NAME: RISOFDEV VS CHATFIELD
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES (TERANEXSYS LLC)**
FILED BY: RISOFDEV INC
TENTATIVE RULING:

Plaintiff Risoftdev Inv. has moved to compel further responses to requests for production of documents from Defendant Teranexsys LLC. Defendant filed a 48 page opposition. It did not comply with California Rule of Court 3.1113(d). Nor did it provide an opposition separate statement, which is what its brief is attempting to mimic, in part. The Court will not consider the overlong brief past page 15.